

THE SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

PRESENT:

MR. JUSTICE MUHAMMAD HASHIM KHAN KAKAR
MR. JUSTICE SALAHUDDIN PANHWAR
MR. JUSTICE ISHTIAQ IBRAHIM

JAIL PETITION NO.348 OF 2024

(On appeal against the judgment dated 18.11.2024, passed by the Lahore High Court, Lahore, in Criminal Appeal No.78388 of 2019 and Murder Reference No.306 of 2019)

Muhammad Mumtaz

...Petitioner(s)

VERSUS

The State

...Respondent(s)

For the Petitioner(s): Mr. Saeed Khurshid Ahmed, ASC

For the Complainant: Sardar Khurram Latif Khan Khosa, ASC

For the State: Mirza Abid Majeed, DPG, Punjab

Date of hearing: 03.02.2026

JUDGMENT

ISHTIAQ IBRAHIM, J.- On 09.03.2015 at 07.30 A.M, the complainant, Muhammad Ramzan (PW-2), along with his brother, Qadar Yar (PW.4), and his mother, Mst. Khatoon Bibi, was taking cattle out of his house, situated at *Dera Sodhi Marri* when in the meantime, Mst. Maryum Bibi, wife of Muhammad Mumtaz, the petitioner, came there and questioned them as to why they were taking the cattle outside on their side. She started hurling abuses and grappled with the complainant's mother Mst. Khatoon Bibi. The petitioner, Muhammad Mumtaz, armed with a 12-bore rifle, along with co-accused Ahmad Yar, who was carrying a *sota*, also arrived at the spot on a motorcycle bearing Registration No. 2845/SGK (Honda CD-70). After parking the motorcycle, both the accused dismounted and came in front of the complainant's house. Co-

accused Ahmad Yar raised a *lalkara* that no one would be spared and inflicted a *sota* blow on the back of Qadar Yar (PW.4), while the petitioner fired with his 12 bore gun at Mst. Khatoon Bibi, as a result, she got hit on her forehead and left cheek, fell to the ground and died on the spot. The petitioner then fired at Mst. Batool Bibi with which she got hit on her chest, fell to the ground and succumbed to injuries. PW Qadar Yar when stepped forward to save Mst. Batool Bibi, the petitioner also fired at him two successive fire shots with which he got hit on his right and left thighs as well as small finger of his left hand. Upon hearing the hue and cry, Muhammad Akram (PW.3) and Ahmad Yar attracted to the spot and witnessed the occurrence; however, they did not approach due to fear. After committing the offence, the accused fled from the scene. The motive behind the occurrence was that, prior to the incident, a criminal case relating to the theft of a buffalo had been registered against the petitioner at the instance of the complainant party, and due to this grudge, the accused committed the offence. The occurrence was reported to police by the complainant through a written complaint Exh.PD on the basis of which FIR Exh.PAA bearing No.127/2015 dated 09.03.2015, under sections 302, 324, 337-F(vi), 337-F(iii) and 34 of the Pakistan Penal Code, 1860, was registered against the petitioner and his co-accused at Police Station *Jhal Chakian Sargodha*.

2. Upon arrest of the petitioner and completion of investigation, a report under section 173 of the Code of Criminal Procedure, 1898 (**'the Code'**) was submitted against him before the Additional Sessions Judge, Sargodha (**'the Trial Court'**). Upon conclusion of the trial, the Trial Court vide judgment dated 26.09.2019 convicted and sentenced the petitioner under the following offences.

Under Section 302(b) PPC:- Sentenced to death on two counts and to pay compensation of Rs.4,00,000/- i.e. Rs.2,00,000/- to legal heirs of each deceased in terms of Section 544-A of the Code and in default thereof to further undergo simple imprisonment for six months.

Under Section 324 PPC:- To undergo rigorous imprisonment for seven years and to pay Rs.50,000/- as fine and in default thereof to further undergo simple imprisonment for three months.

Under Section 337-F(iii) PPC:- To undergo rigorous imprisonment for one year and to pay Rs.20,000/- as *Daman* to injured Qadar Yar.

Under Section 337-F(vi) PPC:- To undergo rigorous imprisonment for three years and to pay Rs.20,000/- as *Daman* to injured Qadar Yar.

The substantive sentences of imprisonment were directed to run concurrently and benefit of Section 382-B of the Code was extended to the petitioner.

3. The Lahore High Court, Lahore (**'the High Court'**), while dismissing the appeal filed by the petitioner-convict, maintained his conviction and sentences and, consequently, answered Murder Reference No. 306 of 2019, sent by the Trial Court for confirmation or otherwise of the death sentence, in the affirmative vide judgment dated 18.11.2024. Through the instant Jail Petition, the petitioner-convict has questioned his conviction and sentences recorded by the Courts below.

4. We have heard the learned counsel for the parties as well as the learned Deputy Prosecutor General, Punjab, appearing on behalf of the State, and have perused the record, the evidence, and the judgments of the Courts below with their able assistance.

5. It appears from the record that the untoward incident occurred on 09.03.2015 at about 7:30 a.m., in which two ladies, namely Mst. Khatoon Bibi and Mst. Batool Bibi, were done to death by firearm, while PW Qadar Yar sustained injuries, in front of the house of the complainant, Muhammad Ramzan, situated at *Dera Sodhi Marri*, falling within the territorial jurisdiction of Police Station *Jhal Chakian, Sargodha*. The occurrence was reported by the complainant at 8:30 a.m., i.e., within one hour of the incident. The distance between the place of occurrence and Police Station *Jhal Chakian* is about seven kilometres, as reflected in the FIR (Exh.PD/1). Keeping in view the said distance and the fact that the complainant was confronted with the unnatural death of his mother and sister-in-law (*bhabhi*), as well as injuries sustained by his brother Qadar Yar, the time of one hour consumed in arranging transportation and shifting the dead bodies and injured appears natural and reasonable. We are, therefore, in agreement with the

Courts below that the FIR was lodged with promptitude, which effectively rules out the possibility of consultation or deliberation on the part of the complainant in making report.

6. In the FIR, complainant Muhammad Ramzan has directly and specifically attributed the role of firing to the petitioner, resulting in the murder of Mst. Khatoon Bibi and Mst. Batool Bibi and injuries to PW Qadar Yar. During trial, the complainant (PW-2), Muhammad Akram (PW-3), and the injured Qadar Yar (PW-4) appeared before the learned Trial Court and furnished a consistent ocular account of the occurrence. A careful perusal of their testimonies reveals that they have given a straightforward, natural, and confidence-inspiring account of the incident and have assigned the role of firing at the two deceased and injured PW to the petitioner-convict. Their statements are consistent and in harmony with one another on all material particulars, including the date, time, and place of occurrence, as well as the manner in which the petitioner-convict along with co-accused arrived at the spot on a motorcycle and committed the offence. They are also consistent with regard to the role assigned to the petitioner and the firearm injuries caused by him to the two deceased and the injured PW with his 12-bore rifle. The bona fides of the eyewitnesses can be inferred from the fact that it would have been quite easy for them to also attribute the role of firing to the co-accused; however, they refrained from doing so and instead came forward with a version confined to what they had actually seen and what truly occurred at the spot. The eyewitnesses have offered plausible explanations for their presence at the spot at the relevant time. The presence of PW Qadar Yar, having sustained firearm injuries on both thighs and the little finger of his left hand in the occurrence, cannot be doubted. The occurrence took place in front of the complainant's house in the early hours of the morning. The petitioner-convict, being a co-villager of the eyewitnesses, was already known to them; therefore, as the incident occurred in broad daylight, the question of mistaken identity of the petitioner-convict on the part of the eyewitnesses does not arise. All the eyewitnesses are brothers inter se and cultivators by profession; therefore, their

presence at their house in the early hours of the morning was natural, particularly when their stance is that they were taking their cattle out at the time the occurrence took place. It is a common practice and custom in villages for people to take their cattle for grazing in the early hours of the morning. The eyewitnesses were subjected to lengthy and searching cross-examination; however, nothing beneficial to the defence or adverse to the prosecution could be elicited from them. They remained steadfast in their stance and corroborated each other on every material aspect of the occurrence. Except for minor inconsistencies, nothing was brought out by the defence that could create any dent in the prosecution's case or cast doubt on their presence at the spot at the relevant time. It is borne out from the record that deceased Mst. Khatoon Bibi was the mother of the eyewitnesses, while Mst. Batool Bibi was the sister-in-law of the complainant and PW Muhammad Akram, and the wife of the injured Qadar Yar. It does not appeal to reason that eyewitnesses who had lost such close relations would spare the real culprit and falsely implicate an innocent person. It is now well-settled that closely related eyewitnesses, who have themselves witnessed the occurrence and suffered the loss of close family members, are highly unlikely to falsely implicate an innocent person while allowing the actual offender to escape. The possibility of substitution in such circumstances is extremely remote and, in the facts of the present case, beyond the realm of probability. This Court in *Aman Ullah v. The State* (2023 SCMR 723), *Imran Mehmood v. The State* (2023 SCMR 795), *Asfandiyar v. The State and others* (2021 SCMR 2009), and *Muhammad Abbas and another v. The State* (2023 SCMR 487), has consistently held that related witnesses who have personally witnessed the crime and lost family members in the same occurrence cannot be discarded merely on the ground of relationship.

7. The medical evidence, furnished by Dr. Nasir Iqbal (PW-1), who examined the injured Qadar Yar, and Lady Dr. Qurat-ul-Ain (PW-8), who conducted the post-mortem examinations of the deceased Mst. Khatoon Bibi and Mst. Batool Bibi deceased, fully

supports the prosecution's ocular account. According to the testimony of Dr. Nasir Iqbal (PW-1), the injured Qadar Yar had sustained firearm entry wounds on the front and medial side of the right thigh, a firearm entry wound on the left thigh, and a firearm injury on the little finger of his left hand. These injuries are consistent with, and substantiate, the version of the eyewitnesses regarding the manner and nature of injuries sustained by the injured witness. As per the testimony of Lady Dr. Qurat-ul-Ain (PW-8), the firearm injuries sustained by both deceased ladies were ante-mortem in nature and were sufficient, in the ordinary course of nature, to cause death. The bunch and nature of firearm injuries observed on the bodies of the two deceased females, when examined in conjunction with the identical firearm injuries found on the person of the injured Qadir Yar, clearly establish the use of a 12-bore firearm in the occurrence, as such injuries are ordinarily attributable to a weapon of that description. In view of the foregoing, the medical evidence brought on record provides strong and independent corroboration to the ocular account of the prosecution's case.

8. Upon reappraisal of the evidence available on record, we are of the considered view that the prosecution has succeeded in establishing the guilt of the petitioner-convict through trustworthy ocular testimony, which is duly corroborated by the medical evidence. However, the sentence of death awarded to the petitioner-convicts on two counts by the Courts below calls for serious reconsideration in view of the peculiar facts and circumstances, particularly the admitted position that the occurrence was not the outcome of any pre-planned or pre-meditated design. It is also an undisputed fact that the petitioner-convict and the complainant party are neighbours inter-se and, as reflected in the site plan (Exh.PS/1), their houses are adjacent to each other and situated in the same Mohallah. The record further reveals that while the complainant party was taking cattle by passing alongside the house of the petitioner, Mst. Maryum Bibi wife of the petitioner, became annoyed and proceeded to the house of the complainant party for

complaint, where a scuffle/grappling took place between her and Mst. Khatoon Bibi (deceased), the mother of the complainant. Upon the said grappling of his wife and Mst. Khatoon Bibi deceased, the petitioner-convict attracted to the spot and the said grappling ensued in the present occurrence. Apart from above, the prosecution witnesses asserted that, prior to the occurrence, the petitioner-convict had been implicated in a criminal case relating to the alleged theft of a buffalo at the instance of the complainant party and that he, being aggrieved therefrom, committed the offence, however, no independent or documentary evidence, such as a copy of the FIR or the judgment rendered in the said case by any Court, was produced on record. In the absence of such supporting material, the alleged motive cannot be said to have been established. Similarly, the recovery of the crime weapon, allegedly effected at the pointation of the petitioner and subsequently reported by the Punjab Forensic Science Agency (PFSA), Lahore, to be in working condition, is inconsequential, for the reasons that no crime empties were recovered from the place of occurrence. The record further shows that at the time of recording of his statement under section 342, Cr.P.C. on 21.09.2019, the petitioner-convict was approximately seventy (70) years of age. As of today, i.e., 03.02.2026, he is about seventy-six (76) years, six months, and six days old, and thus is a man of an advanced age. Considering all the above as mitigating circumstances, we are of the considered opinion that the ends of justice would be adequately met by commuting the sentence of death awarded to the petitioner-convict to imprisonment for life.

9. Accordingly, this petition is converted into an appeal and partly allowed. The conviction and sentences of the petitioner-convict in all the offence are upheld, however, his sentence under section 302(b) PPC is commuted from death on two counts to rigorous imprisonment for life on two counts. All the substantive sentences of imprisonment shall run concurrently and benefit of Section 382-B of the Code is extended to the petitioner-convict in light of ratio of judgments of this Court rendered in cases titled, *Shah Hussain vs the State* (PLD 2009 Supreme Court 460) and

Sajjad Ikram and others vs Sikandar Hayat and others (2016 SCMR 467).

Islamabad the

03rd February, 2026

Approved for Reporting

M.Siraj Afridi PS